

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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CURTIS KNIGHT,

COMPLAINT

**15 CV 2662 (VEC)
ECF Case**

Plaintiff,

vs.

The CITY OF NEW YORK, POLICE
OFFICERS TELLY WARING, Shield 20352,
and JOHN DOES 1-4,
in their individual and official capacities,

JURY TRIAL DEMANDED

Defendants.
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Plaintiff Curtis Knight, by his attorney, Cyrus Joubin, complaining of the Defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This civil rights action arises from the unlawful search, false arrest, and malicious prosecution of Curtis Knight (“Plaintiff”) after NYPD officers barged in on his family gathering and apprehended him on the false and fabricated grounds that he was trespassing. Plaintiff asserts constitutional claims pursuant to 42 U.S.C. § 1983 (“Section 1983”) against the individual defendants for false arrest and imprisonment, unlawful search, malicious prosecution, excessive force, and failure to intervene, and a *Monell* claim against the City of New York for the same constitutional violations. Additionally, Plaintiff asserts analogous claims under New York Law against the individual defendants, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney’s fees pursuant to applicable state and federal civil rights law.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (a)(3) and (4), this being an action seeking redress for the violation of Plaintiff's constitutional and civil rights.

3. Plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all state law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy which gives rise to the federally based claims and causes of action.

VENUE

4. Venue is proper in the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391(b) because the acts complained of occurred in this district.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury on each and every one of his claims as pled herein, pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff Curtis Knight is an African-American male, a United States citizen, and a resident of New York, NY.

7. The individually named defendants Police Officer Telly Waring (Shield # 20352) ("PO Waring") and Police Officers John Doe 1 – 5 (collectively, the "individual defendants") are and were at all times relevant herein officers, employees and agents of the New York City Police Department ("NYPD").

8. On the date of the incident giving rise to this complaint, the individual defendants were assigned to the NYPD 32nd Precinct.

9. Each individual defendant is sued in his individual and official capacity. At all times mentioned herein, each individual defendant acted under the color of state law, in the capacity of an officer, employee, and agent of defendant City of New York (“Defendant City”).

10. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized by law to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

NOTICE OF CLAIM

11. Plaintiff served a Notice of Claim on the Comptroller of the City of New York within ninety days of the incident, being assigned Claim # 2014PI029068. At least 30 days have elapsed since the service of the Notice of Claim, and adjustment and payment has been neglected or refused.

12. The City of New York demanded a hearing pursuant to General Municipal Law § 50-h, which hearing was held on December 17, 2014.

13. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

STATEMENT OF FACTS

14. On June 10, 2014, in the early afternoon, Curtis Knight (“Plaintiff”) went to a family gathering in his cousin’s apartment (“the Apartment”) at 220 West 141 Street in upper Manhattan, New York City.

15. When Plaintiff arrived, he greeted and caught up with family members, whom he had not seen in many years. It began as a typical family gathering, with family news, gossip, and old stories.

16. Nothing illegal or suspicious took place in the Apartment during the gathering. There were no drugs, contraband, or unlawful activity of any kind in the Apartment, and there were no signs indicating anything wrongful.

17. Everyone in the Apartment was an invited guest of Plaintiff's cousin Nathan Dixon and Nathan's wife Connie – the lawful tenants of the Apartment – and everyone was known to each other.

18. Suddenly, around 1:40 PM, a group of NYPD officers in uniform – the individual defendants – showed to up the Apartment without a warrant, and barged their way inside, insisting they were looking for someone.

19. Once inside the Apartment, the individual defendants began searching all the rooms and turned their gaze at Plaintiff and his family, asking “Why are people in the apartment? Who lives here?”

20. The individual defendants' questions were answered truthfully and plausibly – clearly demonstrating to the individual defendants the lawful tenancy of Plaintiff's cousin and the fact that Plaintiff was an invited guest.

21. The individual defendants commanded all the guests to gather in the living room, so that they could search the Apartment more freely.

22. Plaintiff was ordered to put his hands against the living room wall and take off his clothing. Plaintiff stripped down to his underwear, with his pants pulled down to his

ankles. Plaintiff was forced to remain in this position, with his hands on the wall, wearing only his boxers, as the individual defendants searched the rooms.

23. As the individual defendants desperately pored through the Apartment – going on a wild goose chase for contraband of any sort, scouring the nooks of the kitchen and sofa cushions – they asked each other, “Did you find anything? Did you find anything?”

24. Nothing illegal, no evidence of any crime, was found in the Apartment.

25. Despite the fact that Plaintiff had done nothing unlawful, the individual defendants arrested him, handcuffing him behind his back, and took him to an NYPD car.

26. Plaintiff complained that the handcuffs were too tight, but the individual defendants ignored Plaintiff, even as the handcuffs cut into his flesh, causing great pain and deep gashes.

27. Two of the individual defendants drove Plaintiff to the 32nd Precinct (“the Precinct”), at 250 West 135th Street, where Plaintiff was booked and processed, fingerprinted and photographed, searched and locked in a holding cell.

28. At the Precinct, the individual defendants informed Plaintiff that he – along with some of his family members who were also arrested – would be charged with trespassing.

29. The individual defendants concocted the trespassing charge after collectively trying to find a justification for their baseless intrusion into the Apartment, their degrading and unlawful searches, and their false arrests.

30. Plaintiff was transported to Central Booking in lower Manhattan, 100 Centre Street, in the early morning hours of June 11, 2014.

31. Plaintiff remained in the holding cells of Central Booking until the evening of June 11, 2014 when he was arraigned in New York County Criminal Court (“Court”) on Docket Number 2014NY045191.

32. Plaintiff was charged with one count of Criminal Trespass in the Second Degree, in violation of New York State Penal Law Section 140.15(1). The Court Complaint (“the Complaint”) named Mack Navarro (“Mr. Navarro”) as Plaintiff’s co-defendant.

33. The Complaint alleges that Plaintiff and Mr. Navarro “entered and remained unlawfully in a dwelling” on “June 10, 2014 at about 1:44 PM, inside 220 West 141 Street in the County and State of New York.”

34. The Complaint was based on the false statement of PO Waring, who recited a mendacious narrative based on the fictional account collectively fabricated by the individual defendants.

35. In the Complaint, PO Waring “states” that “[t]he factual basis for the charge is as follows: I observed the defendant insides [sic] the above-stated dwelling, a residential facility where people reside. I am informed by Denice Pennicooke, of an address known to the District Attorney’s Office, that she is a case manager at the building at the above location, that the defendants are not tenants of the building, that they were not listed as visitors of any building residents, and they did not have permission or authority to be inside of the building.”

36. The Judge at Plaintiff’s arraignment released Plaintiff on his own recognizance, but ordered Plaintiff to return to Court, Part C, on July 22, 2014.

37. Plaintiff appeared in Court on two occasions before his case was dismissed, on September 12, 2014, for failure to prosecute, pursuant to New York Criminal Procedure Law Section 30.30, because the New York County District Attorney's Office could not acquire the supporting deposition of Denice Pennicooke, the person mentioned in the Complaint.

38. The NYPD failed to supervise and discipline the individual defendants despite their histories of malicious and mendacious behavior, ignoring the risk that they would engage in future misconduct, thereby encouraging them to continue to abuse their powers and violate the rights of civilians.

39. There is a systemic failure to identify, discipline, and supervise NYPD officers who fabricate charges, a failure so widespread, obvious, and tolerated as to constitute a custom and policy of Defendant City.

40. The NYPD's flaccid response to lying officers – particularly in the context of filing false charges – constitutes an irrational custom and policy that fosters a culture of mendacity in the NYPD.

41. Proportionate and appropriate discipline sends a message to NYPD officers that they are not above the law and are accountable to the people whom they serve. But when it comes to making false statements on court documents, NYPD officers almost never face discipline.

42. The Civilian Complaint Review Board ("CCRB") has no jurisdiction to investigate allegations of fabricated statements by NYPD officers in criminal court documents. Investigating, controlling, and punishing this type of wrongdoing is the responsibility of the NYPD.

43. The inadequacy of NYPD's supervision and discipline with respect to dishonesty in the filing of criminal charges is exacerbated by the pressure on police officers to meet arrest quotas, or "performance goals," which pressure officers to arrest people and file charges unlawfully, a pressure not tempered by adequate safeguards that ensure citizens are not wrongfully arrested and charged.

44. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his constitutional rights under the Fourth Amendment to the United States Constitution;
- b. Severe emotional trauma, distress, degradation, and suffering.

SECTION 1983 CLAIMS

FIRST CLAIM

Deprivation of Federal Civil Rights Under Section 1983

45. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

46. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.

47. All of the aforementioned acts deprived Plaintiff of the rights guaranteed to citizens of the United States by the Fourth Amendment to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

48. The individual defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983, and by the Fourth Amendment of the United States Constitution.

49. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

SECOND CLAIM

False Arrest Under Section 1983

50. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

51. By the actions described above, Defendants deprived Plaintiff of his federal civil rights, including his Fourth Amendment right to be secure in his person against unreasonable searches and seizures, specifically his right to be free of false arrest.

52. As detailed above, the individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, without privilege or consent.

53. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

THIRD CLAIM

Malicious Prosecution Under Section 1983

54. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

55. By the actions described, the Defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from malicious prosecution.

56. Without probable cause, the individual defendants directly and actively initiated a criminal proceeding against Plaintiff, creating a fraudulent theory of guilt, providing a mendacious complaint to the D.A..

57. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

FOURTH CLAIM

Failure to Intervene Under Section 1983

58. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

59. Each and every individual defendant had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by other law enforcement officers.

60. The individual defendants failed to intervene on Plaintiff's behalf to prevent, end, or truthfully report the violations of his constitutional rights despite knowing about such violations and having had a realistic opportunity to do so.

61. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged .

FIFTH CLAIM

Municipal Liability Under Section 1983

62. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

63. By the actions described, the Defendant City deprived Plaintiff of his Fourth Amendment right to be free of false arrest, excessive force, and malicious prosecution

through its failure to train, supervise, and discipline mendacious and malicious officers; and through its fostering a culture of abuse and dishonesty among those who wield considerable power over the lives of everyday citizens.

64. As a direct and proximate result of the acts of Defendant City, Plaintiff sustained the other damages and injuries hereinbefore alleged.

SIXTH CLAIM

Excessive Force Under Section 1983

65. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

66. By the actions described, the individual defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from excessive and unreasonable force.

67. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

SEVENTH CLAIM

Illegal Search Under Section 1983

68. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

69. By the actions described, the Defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from unlawful searches.

70. Without probable cause, a warrant, or consent, the individual defendants searched through Plaintiff's clothing and body, where Plaintiff had an expectation privacy.

71. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PENDENT STATE CLAIMS

FIRST CLAIM

False Imprisonment under N.Y. State Law

72. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

73. The individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, and without privilege or consent.

74. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

SECOND CLAIM

Malicious Prosecution Under N.Y. State Law

75. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

76. As detailed above, the individual defendants intentionally and with actual malice initiated a felony prosecution against Plaintiff without probable cause. The prosecution terminated in Plaintiff's favor when all charges against him were dismissed.

77. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

THIRD CLAIM

Unreasonable Search and Seizure Under New York State Constitution Art. I § 12

78. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

79. Article 1, Section 12, of the New York State Constitution declares the right to be free from unreasonable searches and seizures.

80. Without probable cause and without Plaintiff's consent, the individual defendants arrested Plaintiff, searched his person, took his property, confined him, and initiated false charges against him.

81. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

FOURTH CLAIM

Battery Under N.Y. State Law

82. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

83. As detailed above, the individual defendants intentionally touched Plaintiff in an offensive and harmful manner, and they intentionally subjected him to offensive and harmful contact.

84. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

FIFTH CLAIM

Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law (Against Defendant City of New York)

85. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

86. Defendant City owed a duty of care to Plaintiff to prevent the false arrest, malicious prosecution, and mental and emotional abuse sustained by Plaintiff.

87. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

88. Defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants could potentially cause harm.

89. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

90. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

SIXTH CLAIM

Respondeat Superior Under N.Y. State Law

91. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

92. Defendant City is the employer of the individual defendants.

93. Under the doctrine of *respondeat superior*, the Defendant City is responsible for the wrongdoing of its employees acting within the scope of their employment – in this case, the false imprisonment, malicious prosecution, excessive force, and unreasonable search and seizure committed by the individual defendants against Plaintiff.

94. As a direct and proximate result of the acts of the individual defendants detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Curtis Knight in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;
- c. A court order, pursuant to 42 U.S.C. § 1988, that Plaintiff is entitled to reasonable attorney's fees, costs and disbursements; and
- d. Such other and further relief as this Court may deem appropriate.

DATED: April 6, 2015
New York, New York

s/_____
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